

## APC ASSESSORS' BRIEFING

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The legislation changes and technical developments most likely to come up in your autumn 2026 assessment. Updated by Chartered Surveyors for every window.

Updated May 2026 · Next update: August 2026 for autumn window candidates

The Building Safety Regulator became fully independent from HSE in January 2026. It now has standalone powers to oversee higher-risk buildings (broadly 11 metres or 5 storeys+), manage the three-Gateway process for new buildings and take enforcement action against non-compliant dutyholders.

Candidates on Building Surveying, Project Management, Quantity Surveying, Commercial Real Estate and Infrastructure pathways must know the Gateway 1, 2 and 3 process and the key dutyholder roles — Client, Principal Designer, Principal Contractor.

The Building Safety Levy applies to most new residential development in England from October 2026 and must be paid before practical completion. It will be charged per square metre of gross internal floor area. Rates vary by region and dwelling type and will be confirmed by secondary legislation.

Candidates must be able to explain what the levy is, why it was introduced (to fund building safety remediation), which developments it applies to and how it should be factored into development appraisals and pre-contract cost plans from the outset.

The RICS AI Standard became mandatory for all RICS regulated firms and members in March 2026. It sets out requirements for the responsible use of AI in surveying practice — covering transparency, human oversight, data obligations and professional accountability.

The key principle: professional responsibility for AI-assisted work remains with the Chartered Surveyor. You cannot delegate professional judgement to an AI tool. If AI is used in producing advice, the output must be checked, validated and owned by the professional.

The Failure to Prevent Fraud offence under the Economic Crime and Corporate Transparency Act 2023 came into force on 1 September 2025. Large organisations — those with 250+ employees, £36m+ turnover or £18m+ balance sheet — are criminally liable if an associated person commits fraud for the organisation's benefit and the organisation lacked reasonable prevention procedures.

This is brand new, recently in force and directly relevant to Ethics and Professionalism. Assessors are testing it in autumn 2026 windows.

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Section 21 no-fault evictions are abolished under the Renters Rights Act 2025. Landlords must now rely on specific grounds in Schedule 2 of the Housing Act 1988 to recover possession. All tenancies become periodic — no fixed terms — and rent increases are restricted to once per year with a cap mechanism.

The Private Rented Sector Database is also introduced — landlords must register. Failure to register is a criminal offence.

From April 2026 the Written Down Allowance (WDA) for special rate pool assets increases from 6% to 14% — significantly improving the tax efficiency of investment in plant and machinery. The 40% First Year Allowance (FYA) remains available for qualifying energy-efficient and low-emission assets.

The UK's 2050 net zero commitment under the Climate Change Act 2008 (amended 2019) is now a live operational reality for the built environment. The Future Homes Standard expected in late 2026 will require all new homes to produce significantly lower carbon emissions. Embodied carbon — from materials and construction — is increasingly in scope as operational carbon reduces.

New residential buildings over 18 metres must have two staircases from September 2026. This affects floor plate design, gross-to-net ratios and cost planning for high-rise residential schemes currently in design or construction. Existing schemes already under construction may be exempt depending on planning approval dates.

The RICS archived its Property Measurement 2nd Edition in June 2025. IPMS: All Buildings (January 2023) is now the consolidated standard for all asset classes. Members must document which measurement basis has been used on any instruction. The shift to IPMS has created some confusion in practice — assessors are testing whether candidates know which standard applies and why.

All nine APC Assessors' Briefing above are covered in detail inside the platform — with revision sheets, assessor insights, mock interview questions and the Michael available 24 hours a day.

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